

GOVERNMENT OF KERALA

ENVIRONMENT DEPARTMENT

Circular No. 12/2025/Env

Dated, Thiruvananthapuram, 14th February, 2025

Sub:

Environment Department – Environmental-clearance requirements for commercial building projects situated within 500 metres of Vembanad Lake – scrutiny of applications and production of supporting documents – instructions issued.

Ref:

1. Kerala Building Rules, 2022.
2. G.O.(P) No. 45/2024/LSGD dated 18th September, 2024.
3. Circular No. ENV/EC/2023/09 dated 7th November, 2023.
4. Communication No. SEIAA/KL/ENV/2024/301 dated 21st December, 2024 from the State Environment Impact Assessment Authority, Kerala.

CIRCULAR

Attention of all District Collectors, Secretaries of Local Self Government Institutions, Regional Town Planners, Environmental Officers and other officers concerned is invited to the provisions relating to environmental scrutiny of commercial building projects proposed in the vicinity of Vembanad Lake.

2. It has been observed that applications for commercial building permits near Vembanad Lake are being submitted with incomplete location details, inconsistent measurements from the lake boundary and documents showing only that an application for environmental clearance has been submitted. Such documents cannot be treated as final environmental clearance where prior clearance is required under the applicable rules and Government directions.
3. In order to ensure uniform scrutiny of applications and to prevent construction activity without completion of mandatory environmental procedures, the following instructions shall be followed by the officers concerned.

Scope of application

4. This Circular shall apply to commercial building-permit applications where the proposed site is situated within **500 metres** of the verified boundary of Vembanad Lake, including connected backwater areas identified in the approved survey or competent departmental record.
5. Where the application relates to adjoining parcels, multiple blocks or separate phases of one development, the Local Self Government Institution shall examine whether the proposals form one integrated project. The total proposed built-up area of an integrated project shall be considered for determining the applicable scrutiny requirements.
6. The distance from the lake shall be measured horizontally from the nearest point of the proposed permanent building footprint to the nearest verified boundary of the lake or connected backwater area. The measurement shall be shown in the site plan and supported by a certified survey or other reliable record.

Environmental-clearance requirement

7. Where the aggregate proposed built-up area of a commercial project exceeds **3,000 square metres** and the site is within 500 metres of Vembanad Lake, the applicant shall produce final prior environmental clearance issued by the competent environmental authority before a final building permit is issued.
8. The following documents shall not be accepted as substitutes for final prior environmental clearance:
 - (i) acknowledgement of an application;
 - (ii) online submission receipt;
 - (iii) payment challan or fee receipt;
 - (iv) proposal number or file number;
 - (v) communication stating that the application is under examination;
 - (vi) undertaking to obtain clearance after issue of the building permit; or
 - (vii) recommendation not accompanied by the final clearance order.
9. The environmental-clearance document produced by the applicant shall be examined with reference to the following particulars:
 - (i) name and location of the project;
 - (ii) survey numbers and extent of land;

- (iii) name of the project proponent;
- (iv) total built-up area and number of buildings;
- (v) approved land use and project components;
- (vi) date of issue and validity period;
- (vii) conditions imposed by the competent environmental authority; and
- (viii) reference number and issuing authority.

10. Where the clearance produced does not cover the proposed built-up area, survey numbers, project components or material design changes, the application shall be treated as requiring further environmental verification. The Local Self Government Institution shall not issue the final building permit until the discrepancy is resolved by the competent authority.

Documents to be enclosed with the application

11. Every application covered by paragraph 4 shall, as applicable, contain the following documents:

- (i) location plan showing Vembanad Lake and the nearest distance;
- (ii) certified site plan showing the lake boundary and building footprint;
- (iii) statement of total built-up area, including all phases and blocks;
- (iv) final environmental-clearance order, where the threshold conditions apply;
- (v) environmental-clearance conditions and the applicant's compliance undertaking;
- (vi) applicable Local Self Government Institution and departmental no-objection certificates;
- (vii) fire and life-safety clearance, where applicable; and
- (viii) declaration by the applicant regarding the completeness and accuracy of the information submitted.

12. If any document listed in paragraph 11 is not applicable, the applicant shall state the reason for such non-applicability. The permit-issuing officer shall record whether the reason is accepted, rejected or requires further verification.

Scrutiny procedure

13. The Secretary of the Local Self Government Institution shall designate an officer to conduct preliminary scrutiny of applications covered by this Circular.

14. The scrutiny officer shall verify—

- (i) whether the site is within 500 metres of Vembanad Lake;
- (ii) whether the project exceeds 3,000 square metres in aggregate built-up area;
- (iii) whether a final environmental-clearance order has been produced;
- (iv) whether the clearance covers the site, project area and proposed activities;
- (v) whether the proposed setback and site measurements are supported by reliable records; and
- (vi) whether any mandatory no-objection certificate remains pending.

15. Where a mandatory document is absent or a material discrepancy is noticed, the Local Self Government Institution shall issue a written deficiency notice to the applicant and record the deficiency in the permit file.

16. Further technical scrutiny may be undertaken while awaiting a response to a deficiency notice. Such scrutiny shall not be treated as permission to commence construction or as authority to issue the final building permit before mandatory prior approvals are produced.

17. The permit-issuing officer shall prepare a written scrutiny note identifying the documents examined, the provisions applied, unresolved deficiencies and the proposed next step.

Setback and water-body protection

18. The minimum setback from the verified boundary of Vembanad Lake shall be **10 metres**, or such greater distance as may be prescribed by an environmental clearance, town-planning requirement, flood-management direction or other competent authority.

19. No building permit shall be treated as authorising encroachment upon the lake, obstruction of natural drainage, filling of the lake or connected backwater, or interference with public access and maintenance corridors.

20. Where the submitted plan indicates a setback below the applicable minimum, the application shall be returned for correction or placed before the competent authority with a recorded deficiency. The officer shall not treat the applicant's declaration alone as proof of setback compliance.

Reporting and record maintenance

21. All Local Self Government Institutions shall maintain a register of commercial building-permit applications covered by this Circular. The register shall include—

- (i) application number and date;
- (ii) applicant and project name;
- (iii) location and survey numbers;
- (iv) distance from Vembanad Lake;
- (v) aggregate built-up area;
- (vi) environmental-clearance reference and status;
- (vii) date of deficiency notice, if any; and
- (viii) final decision and date.

22. A monthly statement in the format appended to this Circular shall be submitted by the Secretary of the Local Self Government Institution to the Regional Town Planner by the tenth day of the succeeding month.

23. The Regional Town Planner shall review the statements and bring cases involving missing clearance, disputed measurements, project splitting or repeated deficiencies to the notice of the Director of Town and Country Planning.

Processing time for environmental applications

24. Applicants may use the environmental-clearance application forms and filing instructions notified by the competent environmental authority. Local Self Government Institutions shall not prescribe an alternative environmental-clearance form in place of the form prescribed by that authority.

25. The indicative processing period communicated by the environmental authority shall not be treated as a guaranteed period for grant of clearance. Expiry of the indicative period shall not amount to deemed environmental clearance.

26. The Local Self Government Institution shall advise applicants to contact the competent environmental authority regarding the status of a pending environmental application rather than treating a pending application as approval.

Clarification regarding earlier references

27. Officers shall ensure that scrutiny notes and permit decisions refer to the Government Order and Rules in force on the relevant date. G.O. No. 22/2021/LSGD shall not be relied upon where it is inconsistent with G.O.(P) No. 45/2024/LSGD.
28. In cases where an applicant cites an earlier Government Order or circular, the officer shall verify whether that instrument has been amended, superseded or otherwise affected by a later order before relying upon it.

General instructions

29. The provisions of this Circular shall be read with the Kerala Building Rules, 2022, G.O.(P) No. 45/2024/LSGD and other applicable directions issued by the competent authorities.
30. This Circular is intended to standardise administrative scrutiny. It shall not be construed as dispensing with any approval required under an Act, Rule, Government Order, notification or direction of a competent authority.
31. Any difficulty in implementing these instructions shall be reported to Government through the Director of Town and Country Planning with specific facts and the recommendation of the officer concerned.
32. All officers concerned shall acknowledge receipt of this Circular and ensure that the instructions are brought to the notice of officials responsible for building-permit scrutiny.

Sd/-

**Secretary to Government
Environment Department**

To

The Additional Chief Secretary, Local Self Government Department.

The Principal Secretary, Environment Department.

All District Collectors.

The Director of Town and Country Planning.

The Director of Urban Affairs.

The Secretaries of all Municipal Corporations, Municipalities and Grama Panchayats.

The Member Secretary, State Environment Impact Assessment Authority, Kerala.

The Chief Town Planner.

The Law Department.

The Information and Public Relations Department.

Stock File / Office Copy.

Citation anchors for the prototype

- Circular No. 12/2025/Env, paras 4–6 — scope, location and distance measurement.
- Circular No. 12/2025/Env, paras 7–10 — prior environmental-clearance requirement.
- Circular No. 12/2025/Env, paras 11–17 — application documents and scrutiny procedure.
- Circular No. 12/2025/Env, paras 18–20 — setback and water-body protection.
- Circular No. 12/2025/Env, paras 21–26 — reporting and processing guidance.
- Circular No. 12/2025/Env, paras 27–30 — treatment of earlier references and relationship with other instruments.